

F3 CHILD CARE CENTRES

State Environmental Planning Policy (Transport and Infrastructure) 2021

The *State Environmental Planning Policy (Transport and Infrastructure) 2021*, or the Transport and Infrastructure SEPP provides provisions for the exempt and complying development of education and child care facilities. The Transport and Infrastructure SEPP also provides provisions for the development of centre-based child care facilities and schools. To support the Education SEPP, the *Child Care Planning Guideline 2021* (CCPG) provides guidance to encourage design quality in the delivery of centre-based child care in NSW.

Development Applications for centre-based child care facilities are to comply with the provisions of the CCPG.

Children and Young Persons (Care and Protection) Act 1998 and Education and Care Services Regulations 2011

Child Care Services are managed under the *Children and Young Persons (Care and Protection) Act 1998* and the *Education and Care Services Regulations 2011*. The Regulation covers areas such as the staff who work in services and their level of qualification, the size of a service and the ratio of staff to children, physical requirements of building spaces and equipment, health and safety and administrative requirements. An application for a license cannot be made until development consent has been granted.

Licensing and Management

Council has the responsibility for assessing child care centre applications and the NSW Department of Education is responsible for the regulation, licensing and monitoring of children's services in accordance with the state regulations under the *Children and Young Persons (Care & Protection) Act 1998* and *Education and Care Services Regulations 2011*.

An applicant must obtain a licence from the Department of Education to provide centre-based child care once a development application (DA) has been approved, or for a home-based child care centre. Before submitting a DA, the applicant should contact the Department of Education to address licensing issues.